

#	Case Name	
1	Biocorr v VDM 2021-01195606	Motion for Leave to File Amended Cross-Complaint Continued to 08/17/2026
2	Buffalo Park v. Boyd 2025-01532614	Motion to File Cross Complaint The Court grants Defendant Warren Boyd’s Motion to file the proposed Cross-Complaint against Plaintiff Buffalo Park LLC. If the proposed cross-complaint is compulsory, leave <i>must</i> be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50; <i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civ. Proc. before Trial</i> (Rutter 2010) § 6:555.) If defendant's cause of action against plaintiff is related to the subject matter of the complaint, it must be raised by cross-complaint; failure to plead it will bar defendant from asserting it in any later lawsuit. (CCP § 426.30; <i>see AL Holding Co. v. O'Brien & Hicks, Inc.</i> (1999) 75 Cal.App.4th 1310, 1313-1314.) Generally, the court must grant leave to file a compulsory cross-complaint irrespective of whether the failure to timely file the cross-complaint was due to oversight, inadvertence, mistake, neglect, or another cause, so long as the party making the motion has not acted in bad faith or no substantial prejudice to the adverse party is shown. (<i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-100; <i>Foot's Transfer & Storage Co. v. Superior Court</i> (1980) 114 Cal.App.3d 897, 902–903.) In short, courts at best have only a “modicum of discretion” in denying leave to file a compulsory cross-complaint. (<i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, 559; <i>Sidney v. Superior Court</i> (1988) 198 Cal.App.3d 710, 718; <i>but compare Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98 (rejecting view the court may exercise discretion in the denial of a motion to file a compulsory cross-complaint).)

		Here, the proposed Cross-Complaint has claims for 1) declaratory relief 2) accounting and 3) breach of contract against Plaintiff. It is a compulsory cross-complaint. Therefore, the Motion must be granted unless there is bad faith or prejudice. The Court finds neither. Thus, the Motion is granted. Defendant shall file and serve his Cross-Complaint within 15 days. CMC is continued until 10/26/26 at 9:00 a.m. Defendant shall serve notice of this Order.
3	Chang v. Windwood 2025-01528996	Demurrer to Answer Off Calendar
4	Tapia v. Country Villa 2022-01276368	Leave to File Second MSJ / Reconsideration The court will hear argument Motions to Compel / Sanctions / Terminating Sanctions <u>Request for Order Compelling Responses</u> A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, the responding party “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) The “meet and confer” requirement does not apply to a motion to compel responses for failure to serve timely response. (See Code Civ. Proc., § 2030.290; Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1160 [“An ‘attempt to resolve informally’ is not required where a party has <i>failed</i> to respond within the statutory time limit”].) “In addition to the number of interrogatories permitted by Sections 2030.030 and 2030.040, a party may propound a supplemental interrogatory to elicit any later acquired information bearing on all